

25SMCV05171 25SMCV05171

County: los-angeles

Division: Civil Law and Motion

Department: 207

Hearing date: 2026-07-22

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Case Number: 25SMCV05171 Hearing Date: July 22, 2026 Dept: 207

TENTATIVE RULING

DEPARTMENT 207

HEARING

DATE July 22, 2026

CASE

NUMBER 25SMCV05171

MOTION Motion to Set Aside Void

Judgment

MOVING

PARTY Plaintiff Beverly Wilshire

Investment Company, LLC

OPPOSING

PARTY none

BACKGROUND

This case arises from a dispute concerning an unlawful detainer.

On October 1, 2025, Plaintiff Beverly Wilshire Investment Company, LLC ("Plaintiff") filed suit against Defendants Faisal Darwich ("Darwich"); Manal Dawi ("Dawi"); and Panacea Aesthetics & Wellness, Inc. d.b.a. Panacea Aesthetics & Wellness Center ("Panacea") (together, "Defendants").

Default was entered against Defendants on December 30, 2025, and the Court entered default judgment on April 16, 2026.

Plaintiff subsequently received notice that Defendants had obtained a Chapter 7 discharge of the debt at issue in a bankruptcy action. Therefore, Plaintiff now moves to set aside the default judgment entered in this matter as a void judgment. The motion is unopposed.

DISCUSSION

"The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order." (Code Civ. Proc., § 473, subd. (d).)

Subsequent to the Court entering Default Judgment on April 16, 2026, Plaintiff discovered that Defendants received a bankruptcy discharge of the underlying debt at issue on March 16, 2026, making the April 16, 2026 default judgment against them void by operation of federal bankruptcy law.

Specifically, 11 U.S.C., § 524, subdivision (a)(1) provides that a discharge "voids any judgment at any time obtained, to the extent that such judgment is a determination of the personal liability of the debtor with respect to any debt discharged under section 727[.]"

Thus, the April 16, 2026 judgment is void by operation of federal bankruptcy law to the extent it imposes personal liability on Defendants.

CONCLUSION

Finding the April 16, 2026 judgment is void by operation of federal bankruptcy law, the Court grants Plaintiff's unopposed motion and vacates the default judgment entered on April 16, 2026 as void, pursuant to Code of Civil Procedure section 437, subdivision (d).

Further, the Court will enter the

proposed Order lodged on June 2, 2026 in conformity with the ruling.

Further, on the Court's own motion,

the Court sets an Order to Show Cause re Dismissal (Bankruptcy Discharge) on September 23, 2026 at 8:30 A.M. in Department 207.

No appearance will be required at the hearing if the action is dismissed beforehand.

Plaintiff shall provide notice of

the Court's ruling and file the notice with a proof of service forthwith.

DATED:

July 22, 2026 _____/s/_____

Michael E. Whitaker

Judge

of the Superior Court